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Gov. Newsom signs bill to help sustain outdoor dining

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In an effort to keep the al fresco momentum going, Gov. Gavin Newsom signed a new law this week that will allow much of the outdoor and patio dining launched during the pandemic to continue across the state.

Assembly Bill 1217, which was authored by Assemblymember Jesse Gabriel (D-Encino) and is a predecessor of Gabriel's AB 61, supersedes city and county ordinances that might restrict outdoor dining or impose additional fees. It will also allow for continued flexibility when it comes to outdoor dining approvals, including streamlining application processes and waiving some fees.

In 2020, programs like LA Al Fresco and San Francisco's Shared Spaces allowed restaurants to serve diners without having to wade through the typical byzantine processes required. Most notably, Laguna Beach's pedestrian-only promenade on Forest Avenue, which was created in June 2020 to help local businesses affected by COVID-19 restrictions, has since turned into a nearly-permanent fixture.

As life returned to a semblance of normalcy, some of the state's cities and counties moved to return to their past expectations of complicated permitting processes and numerous fees. AB 1217 would change that, while helping allow for the continued conversion of parklets, alleys and sidewalks to new dining spaces.

"Outdoor dining has become an important lifeline for restaurants," said Madelyn Alfano, former chair of the California Restaurant Association Board of Directors, in a written statement. "It's something that we have all come to love and enjoy."

"Many restaurant owners have invested lots of money to build beautiful outdoor dining spaces to increase their capacity for private events and recoup some of their losses from these difficult past few years, said Alfano, who also owns San Fernando Valley restaurant Maria's Italian Kitchen.

Assembly Bill 1217 will remain in effect until July 1, 2026.

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